BOARDROOM-READY · PRIVACY, REGULATORY, COMPLIANCE · 2026

Legal layouts.

Six anchors. Five variants per anchor. Pick the strongest of each row.

HOW TO READ THIS DECK

Each anchor opens with a section divider, then walks five visual treatments of the same idea.

Mark the one that earns the room. Slot labels lift via the slotLabelLift transform — author writes `- Federal`, not `- **Federal**`. The obligation matrix uses the universal `[x] [-] [ ]` state grammar shared with verdict-grid and checklist.

ANCHOR 01 · FEDERAL / STATE / LOCAL

How does authority layer here?

Children's data — three jurisdictions, three obligations.

FEDERAL

15 U.S.C. §6501 · COPPA

Verifiable parental consent for under-13 personal data.

Operators must post a clear notice and a deletion route.

In effect since 2000

STATE

Cal. Civ. Code §1798.120 · CCPA/CPRA

Opt-in for selling or sharing under-16 data; opt-out for over-16.

DSAR handling within 45 days; deletion verified.

Enforced 2023

LOCAL

NYC Admin Code §22-1201

Bias-audit obligation for AEDTs used in employment decisions.

Annual audit + candidate notice + public summary.

Effective 2023

Pick this when the room wants three parallel facts at a glance.

Children's data — Federal floor, State stricter, Local narrowest.

FEDERAL

15 U.S.C. §6501 · COPPA

Verifiable parental consent for under-13 data; the floor.

STATE

Cal. Civ. Code §1798.120 · CCPA/CPRA

Opt-in for selling under-16 data; California raises it.

LOCAL

NYC Admin Code §22-1201

Annual bias-audit duty for employment AEDTs.

Three jurisdictions, full prose, one row each.

FEDERAL

15 U.S.C. §6501 · COPPA

Parental consent for under-13 PI; timely deletion.

STATE

Cal. Civ. Code §1798.120 · CCPA/CPRA

Opt-in for under-16 data; 45-day DSAR response.

LOCAL

NYC Admin Code §22-1201

Annual bias-audit obligation for employment AEDTs; candidate notice required.

Federal floor, then State opt-in, then Local audit duty.

FEDERAL

15 U.S.C. §6501 · COPPA

Parental consent for under-13 PI; the floor.

STATE

Cal. Civ. Code §1798.120 · CCPA/CPRA

California adds opt-in for under-16 data.

LOCAL

NYC §22-1201

New York City adds an annual AEDT bias audit.

Children's data — jurisdiction, citation, obligation, status.

JURISDICTION	CITATION	HEADLINE OBLIGATION	STATUS
FEDERAL	15 U.S.C. §6501	Parental consent for under-13 data	In effect 2000
STATE	Cal. Civ. Code §1798.120	Opt-in for selling under-16 data	Enforced 2023
LOCAL	NYC §22-1201	Annual bias audit for employment AEDTs	Effective 2023

Pick this when the audience wants to scan many obligations at once.

ANCHOR 02 · QUOTE, TRANSLATE, ACT

The verbatim regulation, in plain English, with the obligation.

What counts as "personal information" under CCPA.

Cal. Civ. Code §1798.140(o) · CCPA/CPRA

> *"Personal information" means information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household.*

In plain English: any data tied to a household or device, not just a named person — IP addresses, cookie IDs, and device fingerprints are all in scope.

What we must do

Treat household-level identifiers as PI in our notice, retention, and DSAR workflows. Audit pixel and tag inventory next quarter.

What counts as "personal information" under CCPA.

Cal. Civ. Code §1798.140(o) · CCPA/CPRA

"Personal information" means information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household.

In plain English: any data tied to a household or device, not just a named person.

What we must do

Treat household-level identifiers as PI in notice, retention, and DSAR workflows.

"Personal information" includes the household, not just the person.

Cal. Civ. Code §1798.140(o) · CCPA/CPRA

> *Information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household.*

Personal information, defined.

Cal. Civ. Code §1798.140(o)

Information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked with a particular consumer or household.

Household IDs count.

Device fingerprints count.

Action

Audit pixels next quarter.

Personal information — three columns, three jobs.

Cal. Civ. Code §1798.140(o) · CCPA/CPRA

Information that identifies, relates to, describes, or could reasonably be linked with a particular consumer or household.

Plain English: household-level data is in scope, not just data tied to a named person. Device IDs, cookies, IP addresses all qualify.

Action

Audit pixel inventory and update DSAR workflow to handle household-level identifiers within 45 days.

ANCHOR 03 · REGIMES × OBLIGATIONS

Where every privacy regulator stands on every duty.

Privacy obligations across regimes — state grid.

REGULATION	NOTICE	CONSENT	RETENTION	BREACH	DSAR
GDPR	✓	✓	✓	✓	✓
CCPA/CPRA	✓	−	✓	✓	✓
LGPD	✓	✓	✓	✓	✓
PIPEDA	✓	✓	−	✓	−
HIPAA	✓	✓	✓	✓	−
GLBA	✓	−	−	✓	/

✓ Applies − Partial / Exempt

Check · dash · slash. Neutral ink — applies / partial / exempt as data.

Privacy obligations across regimes — heat map.

REGULATION	NOTICE	CONSENT	RETENTION	BREACH	DSAR
GDPR	✓	✓	✓	✓	✓
CCPA/CPRA	✓	−	✓	✓	✓
LGPD	✓	✓	✓	✓	✓
PIPEDA	✓	✓	−	✓	−
HIPAA	✓	✓	✓	✓	−
GLBA	✓	−	−	✓	/

✓ Applies − Partial / Exempt

Same grammar, semantic palette — red = applies, amber = partial, exempt stays neutral.

Privacy obligations across regimes — same grammar, no heat.

REGULATION	NOTICE	CONSENT	RETENTION	BREACH	DSAR
GDPR	Applies	Applies	Applies	Applies	Applies
CCPA	Applies	Partial	Applies	Applies	Applies
LGPD	Applies	Applies	Applies	Applies	Applies
PIPEDA	Applies	Applies	Partial	Applies	Partial
HIPAA	Applies	Applies	Applies	Applies	Partial
GLBA	Applies	Partial	Partial	Applies	Exempt

Applies · Partial · Exempt

Pills (no heat) — same data, neutral chrome. Less assertive than heat.

Privacy obligations — categorical row stripes.

REGULATION	NOTICE	CONSENT	RETENTION	BREACH	DSAR
GDPR	✓	✓	✓	✓	✓
CCPA/CPRA	✓	−	✓	✓	✓
LGPD	✓	✓	✓	✓	✓
PIPEDA	✓	✓	−	✓	−
HIPAA	✓	✓	✓	✓	−
GLBA	✓	−	−	✓	/

✓ Applies − Partial / Exempt

Lane stripes signal "this row is its own regime."

Three regimes, three obligations, room to breathe.

GDPR	Pre-collection; layered with purposes and legal basis	Opt-in; explicit for special-category data	30-day response; identity verification required
CCPA/CPRA	At or before collection; "Notice at Collection" required	Opt-out default for sale/sharing; opt-in for under-16 minors	45-day response; two free requests per consumer per year
LGPD	Pre-collection; controller identity disclosed	Opt-in for most processing; multiple legal bases recognized	15-day response; appeal route to the ANPD

Pick when each cell carries a sentence, not a glyph.

ANCHOR 04 · WHAT'S NEW

The regulatory motion that closed this quarter.

Privacy & AI motion — Q1 2026.

01 **EU AI Act** Title III — Effective Feb 2026
Conformity-assessment pre-market obligation took effect.

02 **Colorado AI Act** SB 24-205 — Effective Feb 2026
Developer + deployer duties for consequential-decision systems.

03 **FTC v. Avast** §5 unfairness — Final Mar 2026
$16.5M consent order; clarifies the deception standard for privacy branding.

04 **Texas DPSA** §541.151 — Effective Mar 2026
DSAR opt-out portal mandatory; small-business safe-harbor narrowed.

Privacy & AI motion — Q1 2026.

01 **EU AI Act** Title III — Effective Feb 2026

High-risk conformity assessment took effect.

02 **Colorado AI Act** SB 24-205 — Effective Feb 2026

Developer + deployer duties for consequential-decision systems.

03 **FTC Order** In re Avast — Final Mar 2026

$16.5M consent order; browser-history sale despite privacy branding.

04 **Texas DPSA** Bus. & Com. Code §541.151 — Effective Mar 2026

DSAR opt-out portal mandatory.

Privacy & AI motion — Q1 2026 timeline.

JANUARY – MARCH 2026

01

PIPEDA Reform

C-27

Senate reading in January; commissioner powers expanded.

02

EU AI Act

Title III

High-risk conformity-assessment obligation took effect 2 Feb.

03

Colorado AI Act

SB 24-205

Developer + deployer duties effective 1 Feb.

04

FTC v. Avast

§5

Consent order final 14 Mar; $16.5M plus 20-year compliance program.

Privacy & AI motion — Q1 2026 by kind of change.

ADDED

First conformity assessment took effect. **EU AI Act** Title III · high-risk systems

New developer + deployer duties for consequential-decision systems. **Colorado AI Act** SB 24-205

AMENDED

Opt-out portal mandatory; small-business safe-harbor threshold narrowed. **Texas DPSA** §541.151

ENFORCED

$16.5M consent order finalized; 20-year compliance program. **FTC v. Avast** §5 unfairness

Privacy & AI motion — Q1 2026 priorities.

WHAT TO ACT ON, WHAT TO TRACK, WHAT TO LOG

TIER 1	**Act this quarter — EU AI Act**	Title III	High-risk conformity-assessment paperwork pre-market; engineering deadline before any EU launch.
TIER 2	**Track — Colorado AI Act**	SB 24-205	Developer + deployer duties; published deployer-notice template due in Q2.
TIER 3	**Log — FTC v. Avast**	§5	Consent order final; informs how the FTC frames the deception standard.

ANCHOR 05 · TEXTUAL DIFF

What changed in the text we live by?

SB-362 rewrote the opt-out link rule.

Cal. Civ. Code §1798.135 · amendment SB-362 (2024)

A business that ~~collects~~ **collects, sells, or shares** consumers' personal information shall provide ~~two or more~~ **at least one** designated method for submitting requests to opt-out, **including, at minimum, a clear and conspicuous link on the homepage titled "Your Privacy Choices,"** for use by consumers to ~~opt out of the sale of~~ **direct the business not to sell or share** their personal information.

> Why this matters SB-362 collapses "sale" and "sharing" into one duty and pins a uniform link title — homepage chrome and DSAR workflows both need a uniform UX.

SB-362 rewrote the opt-out link rule — side-by-side.

OLD

A business that **collects** consumers' personal information shall provide **two or more** designated methods for submitting requests to opt-out for use by consumers to **opt out of the sale of** their personal information.

NEW

A business that **collects, sells, or shares** consumers' personal information shall provide **at least one** designated method for submitting requests to opt-out, including a clear and conspicuous homepage link titled **"Your Privacy Choices,"** for use by consumers to **direct the business not to sell or share** their personal information.

> Why this matters Sale and sharing collapse into one duty; the homepage chrome and DSAR workflows both need a uniform UX.

Cal. Civ. Code §1798.135 · before vs after

SB-362 — annotated.

Cal. Civ. Code §1798.135 · amendment SB-362

A business that ~~collects~~ **collects, sells, or shares** [1] consumers' personal information shall provide ~~two or more~~ **at least one** [2] designated method for submitting requests to opt-out, **including a homepage link titled "Your Privacy Choices,"** [3] for use by consumers to opt out.

1. **Scope** Sale and sharing now both trigger the opt-out duty — even free programs are in.
2. **Floor** Two-channel minimum drops to one; a homepage link plus a portal is now sufficient.
3. **Chrome** The literal link title is now mandated — uniform branding across the web.

SB-362 — old block on top, new block below.

Cal. Civ. Code §1798.135 · amendment SB-362

OLD — prior text

~~A business that collects consumers' personal information shall provide two or more designated methods for submitting requests to opt out for use by consumers to opt out of the sale of their personal information.~~

NEW · current

A business that collects, sells, or shares consumers' personal information shall provide at least one designated method for submitting requests to opt-out, including a clear and conspicuous homepage link titled "Your Privacy Choices," for use by consumers to direct the business not to sell or share their personal information.

SB-362 — old, new, and why it changed.

OLD

A business that collects consumers' personal information shall provide two or more designated methods for opt-out — to opt out of the sale of personal information.

NEW

A business that collects, sells, or shares consumers' personal information shall provide at least one method, including a homepage link titled "Your Privacy Choices," to direct the business not to sell or share personal information.

WHY

`Scope` Sale and sharing collapse into one duty — even free programs trigger the obligation.

`Floor` Two-channel minimum drops to one — a homepage link plus a portal now suffices.

`Chrome` The literal link title is now mandated — uniform branding.

Cal. Civ. Code §1798.135 · amendment SB-362

ANCHOR 06 · STATUTE, REGULATION, GUIDANCE, CASE

What actually binds us — and how far down the chain we are.

COPPA — the chain, tier by tier.

STATUTE

15 U.S.C. §6501

Congress, 1998 — verifiable parental consent for under-13 data.

REGULATION

16 C.F.R. Part 312

FTC implementing rule; 2013 rewrite expanded covered identifiers.

GUIDANCE

FTC Six-Step Compliance Plan

Staff guidance — non-binding, but cited in every consent order.

CASE

In re Epic Games · 2022

$245M consent order — operationalised "actual knowledge" standard.

COPPA — authority weight, top binds, bottom illustrates.

STATUTE

15 U.S.C. §6501

Congress, 1998. Binds nationwide.

REGULATION

16 C.F.R. Part 312

FTC implementing rule, 2013 rewrite.

GUIDANCE

FTC Six-Step Plan

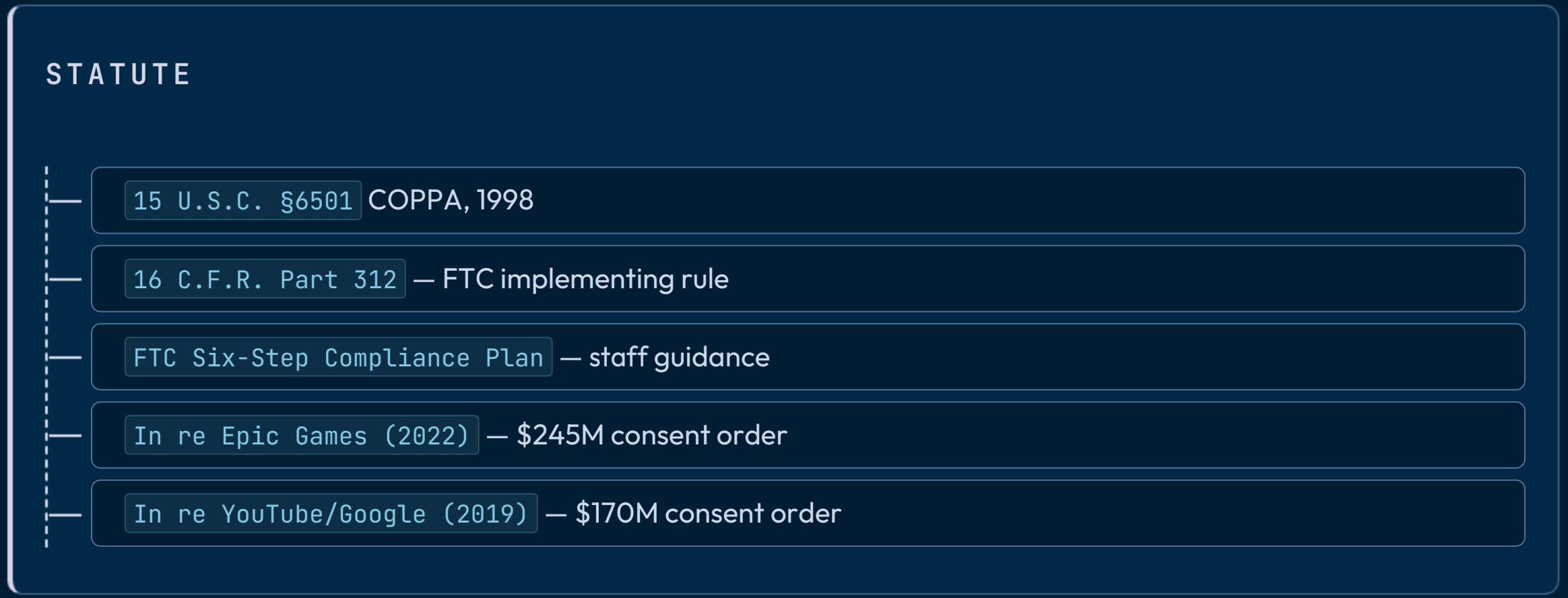
Non-binding but cited.

CASE

In re Epic Games

$245M consent order, 2022.

COPPA — one statute, many branches.



COPPA — bracketed tiers.

STATUTE	`15 U.S.C. §6501` Congress, 1998. The binding floor for under-13 data.
REGULATION	`16 C.F.R. Part 312` FTC implementing rule; 2013 rewrite.
GUIDANCE	`FTC Six-Step Plan` Staff guidance — quoted in every order.
CASE	`In re Epic Games` $245M consent order, 2022 — defines "actual knowledge."

COPPA — four steps to the operative test.

01

STATUTE

15 U.S.C. §6501

02

REGULATION

16 C.F.R. Part 312

03

GUIDANCE

FTC Six-Step Plan

04

CASE

In re Epic Games · 2022

What this deck delivers.

01 Six anchor layouts cover jurisdiction, quotation, regime matrix, motion, redline, and authority.

02 Five visual variants per anchor — the strongest of each becomes the shipped default.

03 Lean authoring: slot labels auto-lift, `[x] [-] [ ]` for state markers, pin-cite typography throughout.

04 Shared-kernel parity: the owned engine (CLI/PDF path + browser playground) and the runtime process the same transforms.

05 The other four variants per anchor can be deleted before graduation into the gallery.

LATTICE · LEGAL & REGULATORY · CANDIDATE DECK

Mark the winners. The rest goes to the cutting room floor.